Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report
Residential Care

Licensee: St. Mary's Home for Boys
Executive Director: Francis Maher

Date of Unannounced: December 8, 2023
Licensing Coordinator: Robin DuVal

Other Regulatory or Accrediting Agencies: Oregon Department of Human Services (ODHS) Child Welfare Treatment Services and Oregon Youth Authority (OYA).

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings **License Renewal Site Visit 06/20-21/2023**	**Repeat Findings Further Action Needed**	**Corrective Actions / Comments**
Supplemental Information Provided by CCA Documents as indicated on form titled "Required Financial Documents and Information" • The agency shall submit the tax compliance certificate once received.	**Yes☐ No✓**	The tax compliance certificate has been submitted. • No further corrective action needed at this time.
Supplemental Information Provided by CCA All required policies and procedures as identified in the "Umbrella Rules" **Corrective Action:** The agency shall update the following policies and procedures pursuant to each OAR and submit for review.* • Conflict of interest in OAR419-400-0070. • Incident reporting – all elements per OAR 419-400-0110(b)(A-D) • Grievance Procedures in OAR 419-400-0090(2), specifically (C) and (D). • Personnel in OAR 419-400-0120 • Mandatory Abuse Reporting in OAR 419-400-0110(1)(a) **Please document the revision date and highlight or utilize "track changes" for areas changed.* **Corrective Action:** Ensure policies are updated when needed to align with changes to ODHS licensing rules for child-caring agencies.	**Yes☐ No✓**	Policies and procedures have been updated. • No further corrective action needed at this time.

Supplemental Information Provided by CCA All required policies and procedures as identified in Residential Care Specific Rules. • **<u>Corrective Action:</u>** The agency shall update the Medication policy and procedure (#M-230) specifically outlining the process of managers preparing medications in advance, utilizing the sealed envelope method, how many days in advance is appropriate and safe, etc. *Note: an exception request has been submitted for permitting medication to be prepared in advance for more than one administration time or for more than one child in care. Upon receipt and review of the requested updated policy, licensing will make an exception determination.*	**Yes☐ No✓**	The Medication policy and procedure has been updated. • No further corrective action needed at this time.
Room and Space Requirements 419-470-0030(8) Separate storage areas are provided for food, kitchen supplies, utensils, clean linens, soiled linens and clothing, cleaning supplies and equip, poisons, chemicals, outdoor recreational and maintenance equipment. (Hazardous materials are properly labeled, in original container and locked) • Bickmore Hall: In the open and unlocked laundry room, laundry detergent was not kept in a locked storage. A spray cleaner bottle was left unattended in one of the milieu rooms. Corrective Action: The agency shall ensure laundry detergent and cleaning supplies are locked and inaccessible to children in care or replace and provide labeled non-hazardous products.	**Yes☐ No✓**	A locking mechanism was installed on the cabinets and was observed to be in place and locked during the walk-thru. • No further corrective action needed at this time.
Room and Space Requirements Bedrooms 419-470-0030(3)(h) Window covering. • Exception on file. Due to the physical structure, privacy is assured.	**N/A✓**	
Residential Care Safety 419-470-0080(5)(a) Evacuation drill occurs monthly under varying conditions, is retained 2 years and contains: **(A) identify of person conducting drill** (B) date & time **(C) notification method** **(D) staff participating** **(E) # of children & staff evacuated** **(F) special conditions simulated** (G) problems encountered (H) time to complete • Various monthly drill logs were missing from the four living units. Required elements were missing or incorrectly recorded on the log. On at least two drill logs reviewed, a drill was not conducted due to the	**Yes✓ No☐**	November evacuation drill logs were observed. Three cottages used the current updated form; however, one cottage used an outdated form. One cottage drill log was missing an entry for time of drill. **<u>Corrective Action:</u>** The agency shall ensure all cottages are utilizing the updated form and ensure that all required elements are documented. **This is a repeat finding.**

alarm pull not working or malfunctioning. Alternative notification methods can be a verbal command, bell, turning lights on/off, etc. **Corrective Actions:** The agency shall ensure an evacuation drill is conducted monthly, following requirements set forth in (A – H), document appropriately, and retained for 2 years. Specific to the Evacuation drill log, the agency shall ensure the following for each drill and properly documented. • (A) printed name of person conducting the drill • (C) notification method, i.e. alarm pull, verbal command, bell, etc. • (D) staff participating need to be listed out by name. • (E) list number of children and staff evacuated (vs. # in cottage) • (F) special conditions simulated – conduct various simulated special conditions, i.e. milieu, youth in bedrooms, lunch room, outside recreation time, etc.		
Medication 419-470-0100(10) Written record of the administration of medication includes: (a) name (b) description (c) dates and times (d) missed doses (e) medication disposed (f) method of administration (g) ID of person administering **(h) possible adverse reactions** (i) medication taken outside facility **<u>Corrective Actions:</u>** 1)White-out correction was observed on a medication administration record. The agency shall ensure the written record of the medication administration are filled out accurately without white-out. Medication errors, or anomalies in documentation or administration, can be documented by adding a notation to the medication administration record. 2)Possible adverse reactions (i.e. side effects) for each prescribed medication shall be listed on the written record of the medication administration (i.e. log), or on a separate document immediately attached or behind the log. All four living units utilize a binder with a tab separator for each child in care's medication record log, therefore possible adverse reaction documentation can be stored along with the log.	**Yes✓ No☐**	1)Medication administration logs were observed to have no white-out or correction tape. • No further corrective action needed at this time. 2)Possible adverse reactions (i.e., side effects) for each prescribed medication were not included with each child's medication record. Some records had a list if there was a medication change, but not for all medications per child. **<u>Corrective action:</u>** The agency shall ensure that each prescribed medication for each child in care shall be listed. The agency utilizes a binder with a tab separator for each child's record and can be stored along with the medication administration log. **This is a repeat finding.**

Personnel Files 419-400-0120(1)(b) & (3)(b) reference checks completed and documented. • The agency shall ensure reference checks are conducted, documented, and retained in the personnel file. If attempts to obtain reference checks are unsuccessful, document the dates and times the requests occurred.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4)(g) Emergency procedures • This training was either provided after 30 days or there was no record of training. The agency shall ensure this training is conducted within 30 days of hire.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Crisis Intervention Training Standards and Certification 419-400-0160(4) **(as applicable)** (a)Complete a minimum of 12 hours of initial training in person from a certified instructor, including but not limited to a minimum of six hours of training focused on positive behavior support, nonviolent crisis intervention and other methods of nonphysical intervention to support children in care during a crisis • Documentation of 12 hours was unclear. The agency shall ensure a minimum of 12 hours of initial training in person from a certified instructor occurs and is properly documented via a certificate (see below).	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Crisis Intervention Training Standards and Certification 419-400-0160(4) **(as applicable)** (d) Receive a certificate that states: (A) The dates during which the certification is current (B) The type of restraint which the individual is certified to perform if applicable (C) The type of training the individual is certified to conduct if applicable (D) Any special endorsements earned by the individual (E) The level of training (F) The name of the certified instructor who conducted the training and administered the assessment of proficiency. • Upon completion of a minimum of 12 hours (noted above), the agency shall ensure a certificate is documented capturing all required data elements. This licensor provided an example.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Ongoing Training 419-470-0120 (2)(a) Environmental emergencies • The agency shall ensure this training is provided annually and appropriately documented.	**Yes✓ No☐**	The agency lacked documentation to demonstrate employees' training occurred. **Corrective Action:** The agency shall ensure all forms and tracking mechanisms are updated to

		include this specific training and appropriately documented. **This is a repeat finding.**
Ongoing Training 419-470-0120 (2)(d) Agency's policy on suicide prevention and risk assessment tool. • The agency shall ensure this training is provided annually and appropriately documented. *Comment: shortly after the on-site review, the agency implemented steps to ensure this occurs.*	**Yes✓ No☐**	The agency lacked documentation to demonstrate employees' training occurred. **<u>Corrective Action:</u>** The agency shall ensure all forms and tracking mechanisms are updated to include this specific training and appropriately documented. **This is a repeat finding.**
Children's Records Consents 419-470-0160(1)(c) Use restraint or seclusion (if applicable). Must specify the reasons for the intervention and how staff are trained and supervised. • Information is provided; although documentation was unclear regarding whether parents or guardians provided actual consent. The agency shall ensure appropriate signatures indicating consent are obtained from the child in care's parent or guardian and documented appropriately.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Children's Records Consents 419-470-0160(1)(e) Allow access as defined in 419-400-0230 & 0240. • The agency shall ensure this consent is included at intake and obtain appropriate signatures from the child in care's parent or guardian and document appropriately.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Children's Records Disclosures 419-470-0160(2) Parent/guardian has acknowledged in writing: (c) Any policies and procedures upon request. • The agency shall ensure this disclosure is included at intake and obtain appropriate signatures from the child in care's parent or guardian and document appropriately.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Children's Records Information about Children in Care 419-400-0190(1) Summary sheet contains the following: (a)The name, gender, date of birth, religious preference, and previous address. • The agency shall ensure a category for "gender" is listed on the summary sheet (aka face sheet) and completed going forward.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.

Children's Records Relating to Restraint & Involuntary Seclusion 419-400-0180(13)(e) Each child caring agency shall provide notice regarding how to access the quarterly reports to the parents or guardians of children in care in the program. The child caring agency shall provide the notice upon the child in care's admission and at least two times each year thereafter. • This information was not consistently documented as being provided. **Corrective Action:** The agency shall ensure this notice is provided to parents or guardians of children in care upon admission and at least two times each year thereafter and documented appropriately as being provided.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Children's Records Relating to Restraint & Involuntary Seclusion 419-400-0190(1) Information provided to children in care relating to Restraint & Involuntary Seclusion. • This information was not consistently documented as being provided to children in care. **Corrective Action:** The agency shall ensure this notice is provided to children in care and document appropriately as being provided.	**Yes☐ No✓**	This requirement was met. No further corrective action needed at this time.
Children's Records and Documentation 419-400-0140(3)&(4) Uniform in organization, readily identifiable and accessible, current, and complete, containing all required info. No eraser tape or white out. • *Use of white-out on a medication administration record is captured in a finding above.*	**Yes☐ No✓**	Medication administration logs were observed to have no white-out or correction tape. • No further corrective action needed at this time.

New Findings from Site Visit
None

Interview Summary
Two youth were individually interviewed ages 15 and 16 with stays in the program of 3 months and 18 months, respectively. Both gave examples of how the agency is helping them, that they feel safe, and staff are trusting. Their peer community is good, food is good and plentiful, school is good and they get help when needed, and there's been no issues getting medications as prescribed. They report the agency does well at caring for and helping the youth, providing a safety net and being supportive, as well as the activities and off-campus outings. They have regular phone calls with approved contact people, and calls are mostly private, meaning a staff is nearby monitoring but not actively listening. One youth reported voluntarily utilizing the isolation room once as it helped them have a distraction free area to regulate and process their feelings. When asked if they could change anything about the program, they reported the inconsistency of staff's expectations. It's relatively manageable but can cause some dysregulation among peers. The longer-term youth reported having watched a restraint performed once, and they felt the staff worked with the other youth to deescalate and encourage them to make other choices, but a restraint became necessary despite their efforts to deescalate the situation.. The restraint appeared to be done with care and concern.

Observations
The walk-through consisted of all four living units, including a random selection of approximately 4 youth bedrooms per hall, living unit bathrooms, milieu, and isolation/seclusion rooms.

Corrective Actions and Timeframes: Please submit the following to verify compliance.

Within 45 days of receipt of this report **St. Mary's Home for Boys** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to **Robin.M.DuVal@odhsoha.oregon.gov**.

Licensing Coordinator's Signature: _____ Date: 12/18/2023

Manager Review: _____ Date: 12-18-2023